

Memorandum for Record – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: ACC-APG-Natick Division

2. Description of Action: Color concentrates and compounds for use in extrusion of polymeric materials into fiber form.

Nature: ☐ New Requirement ☒ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order Number: XXXXXXXXXX
☐ Blanket Purchase Agreement (BPA) Number _____
☐ Order/BPA# _____ against FSS Contract # _____
☐ Order # _____ against Multiple Award IDIQ Contract
 Name or # _____
☐ Order # _____ against a single award IDC Contract
 # _____
☐ Modification # _____ to existing PO/TO/DO/Call Order
 # _____

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐
 Cost Reimbursable ☐ Hybrid

Funds: ☐ Operations & Maintenance, Army (OMA) ☒ Other Funds: RDTE
 FY: 25

Name of Proposed Contractor(s) and Address:

Avient Corporation
85 Industrial Drive
Holden, MA 01520

Brand Name Buy: ☐ Yes ☒ No

3. Description of Services or Supplies: The compounds are critical components used in extrusion of polymeric materials into fiber form for a specific end product based on other government agency (OGA) customer requirements. Compounds include a government furnished material. The requirements cannot be changed without approval by the OGA customer and the OGA customer's oversight agency. Any change in materials that make up the end product must be approved by the OGA customer's Change Control Board (CCB). Changes in materials would require extensive research and evaluation before even seeking CCB approval; this would jeopardize the current production schedule.

Delivery Date: [REDACTED]

Total Value: \$ [REDACTED]

4. Authority:

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Or

- ☐ FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name
- ☐ FAR 8.405-6(a)(1)(i)(A) Urgency
- ☐ FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable
- ☐ FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

Or

- ☐ FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable
- ☐ FAR 16.505(a)(4) Brand Name
- ☐ FAR 16.505(b)(2)(i)(A) Urgency
- ☐ FAR 16.505(b)(2)(i)(C) Logical Follow-on
- ☐ FAR 16.505(b)(2)(i)(D) Minimum Guarantee

5. Reasons for Authority Cited: These specific compounds use trade secrets known only to the vendor (Avient). Compound formulations are available only from contractor due to the proprietary combination of materials and additives. These unique compounding formulations were developed by the DEVCOM-SC and Clariant after iterative trials during the 1980's. The resultant proprietary formulations meet the unique requirements of the OGA customer. Due to the sensitive nature of the materials and the program the formulations cannot be disclosed to other potential sources.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____.

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

☒ Action is NOT a brand name restriction and is under \$250K, no posting required

☐ Action is a brand name restriction, under \$25K, no posting required

☐ Action is a brand name restriction, over \$25K. It will be redacted and posted with the solicitation.

☐ Action is a brand name restriction over \$25K but will not be posted due to exception:

- ☐ FAR 6.305(f)
- ☐ FAR 8.405-6(b)(3)(iii)(A)
- ☐ FAR 8.405-6(b)(3)(iii)(B)
- ☐ FAR 8.405-6(b)(3)(iii)(C)
- ☐ FAR 16.505(a)(4)(iii)(C)

7. Market Research: A limited market survey has been conducted each year since 2021 to ascertain the ability of other companies ([REDACTED]) to produce similar materials. The results concluded that the alternatives to the proprietary combination of compounds and additives did not meet the OGA customer requirements.

8. Other Facts: The requirement for compounds specified above is based on current OGA customer requirements. Should there be a significant change in the requirements in the future, follow-on actions could possibly be competed. However, until such time that the end product requirements are changed, there is no further action the Government can take.

9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED]

Date: 19 March 2025

Title: [REDACTED]

Signature [REDACTED]

10. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon price analysis.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition

subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: Brandon Rivett

Date: 03/19/2025

Title: Contracting Officer

Signature:

